



POLICE DEPARTMENT CITY OF NEW YORK

April 28, 2016

MEMORANDUM FOR: Police Commissioner

Re: Detective Robert Mejia
Tax Registry No. 928771
Housing Bronx/Queens
Disciplinary Case No. 2013-9991

Charges and Specifications:

1. Said Detective Robert Mejia, while assigned to the Narcotics Borough Queens, on or about July 11, 2006, in Queens County, knowing that written instruments, to wit: Department arrest paperwork, filed with the New York City Police Department, contained a false statement or false information and with intent to defraud the state or a political subdivision thereof, offered or presented said paperwork to a public office or public servant with the knowledge or belief that it would be filed or otherwise registered or recorded in or otherwise become the records of such public office or public servant.
P.G. 203-10, Page 1, Paragraph 5 - PUBLIC CONTACT - PROHIBITED
CONDUCT GENERAL REGULATIONS
N.Y.S. Penal Law Section 175.35 "Offering a false instrument for filing in the first degree"
2. Said Detective Robert Mejia, while assigned to the Narcotics Borough Queens, on or about July 11, 2006, in Queens County, with the intent to defraud, made or caused to be made false entries in the business records of an enterprise, and the intent to defraud included an intent to commit another crime, to wit: offering a false instrument for filing or to aid or conceal the commission thereof.
P.G. 203-10, Page 1, Paragraph 5 - PUBLIC CONTACT - PROHIBITED
CONDUCT - GENERAL REGULATIONS
N.Y.S. Penal Law Section 175.10 "Falsifying business records in the first degree"
3. Said Detective Robert Mejia, while assigned to the Narcotics Borough Queens, on or about July 11, 2006, in Queens County, being a public servant, with intent to obtain a benefit or deprive another person of a benefit, committed an act relating to his office but constituting an unauthorized exercise of his official functions, knowing that such act was unauthorized.
P.G. 203-10, Page 1, Paragraph 5 - PUBLIC CONTACT - PROHIBITED
CONDUCT GENERAL REGULATIONS
N.Y.S. Penal Law Section 195.00(1) "Official misconduct"

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4. Said Detective Robert Mejia, while assigned to the Narcotics Borough Queens, on or about January 13, 2007, in Queens County, with intent to cause physical injury to another person or persons, attempted to cause such injury to two (2) individuals known to the Department.
P.G. 203-10, Page 1, Paragraph 5 - PUBLIC CONTACT - PROHIBITED
CONDUCT GENERAL REGULATIONS
N.Y.S. Penal Law Section 110/120.00(1) "Attempted assault in the third degree"

Appearances:

For the Department: David Green, Esq.
Department Advocate's Office
One Police Plaza, Room 402
New York, NY 10038

For the Respondent: James Moschella, Esq.
Karasyk & Moschella, LLP
233 Broadway – Suite 2340
New York, NY 10279

Hearing Dates:

January 12, 13, 14 and 15, 2016

Decision:

Not Guilty

Trial Commissioner:

DCT Rosemarie Maldonado

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on January 12, 13, 14 and 15, 2016. Respondent, through his counsel, entered a plea of Not Guilty to the subject charges. The Department called Jhorman Guzman, Jonathan Martinez, Stephen Anderson, Sergeant Christopher Castle and Lieutenant Edward Rodriguez as witnesses. Respondent called Detective Alexander Winters as a witness and testified on his own behalf. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's consideration.

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DECISION

After reviewing the evidence presented at the hearing, and assessing the credibility of the witnesses, I find Respondent not guilty of the misconduct charged in Specifications 1, 2, 3 and 4.

FINDINGS AND ANALYSIS

Specifications 1, 2 and 3:

False Statements and Official Misconduct

From July 2004 to February 2007, Respondent was an undercover officer assigned to the Queens Narcotics Division team that conducted buy-and-bust street operations. (Tr. 529-30) During the incident in question, Respondent was the primary undercover tasked with making narcotics purchases in the field. The above specifications allege that Respondent falsely implicated two individuals in a narcotics sale when no sale took place. The following facts are undisputed.

On June 20, 2006, Respondent purchased narcotics from Guzman [REDACTED]

[REDACTED]

Guzman was not arrested on that date for reasons Respondent failed to recall. (Tr. 551, 556) The substance purchased was sent to a laboratory and tested positive for cocaine. (Tr. 368-69)

At approximately 1900 hours on July 11, 2006, Respondent and former detective Stephen Anderson entered a [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] [REDACTED] Anderson was the designated ghost of the team. As such his role was to ensure Respondent's safety by observing his interactions and providing real time information to the field team.

Respondent approached Guzman and asked if he had cocaine for sale. Guzman's friend, Person A, was also at the park. (Tr. 26-29, 184-85, 550-54) After approximately two minutes the field team was notified that a buy had taken place and moved in to arrest both

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Guzman and Person A (Tr. 31-33, 192-95) Nine small bags of cocaine were retrieved from Guzman. According to Sergeant Castle, these bags tested positive for cocaine. (Tr. 54, 355; DX 3) The prerecorded buy money, however, was "not recovered." (Ex. 3)

Following the notification of a buy, Respondent and Anderson returned to the Queens Narcotics Command, commonly referred to as the barn. Respondent proceeded to the second floor, where he, Anderson and other undercover officers had desks. He processed the buy paperwork, vouchered one bag of product, and submitted it for laboratory testing. The subsequent lab report revealed that the product Respondent submitted was sodium bicarbonate, commonly referred to as baking soda, and not a controlled substance. The test result was recorded in a log book designated for that purpose. (Tr. 321; DX 4)

Guzman was unable to make bail. As a result, he spent fifty days incarcerated before pleading guilty to criminal possession of a controlled substance, a misdemeanor. He was sentenced to time served. (Tr. 36-37) Person A pled guilty to disorderly conduct and was also sentenced to time served. (Tr. 371, 515)

In 2009, Anderson was arrested for his involvement in the fabrication of drug sales commonly known as "flaking."¹ He ultimately pled guilty to criminal sale of a controlled substance in the third degree. In exchange for a reduced sentence, Anderson provided the Queens District Attorney's Office with information about alleged misconduct committed by about thirteen NYPD members of service, including Respondent. He also testified at criminal and administrative police corruption proceedings before the conclusion of that agreement. In December 2014, Anderson was sentenced to two years in prison, as opposed to a sentence in the seven year range that he believed he was facing. His cooperation agreement terminated on the

¹ Prior to his arrest, Anderson resigned from the NYPD and entered the Police Academy in Nassau County. However, he was asked to resign from the Nassau Police Department in 2008 amid allegations of cheating on Police Academy exams. (Tr. 337-38)

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date of sentencing. Anderson was released on parole in September 2015. (Tr. 166-72, 259, 264; DX 1)

In dispute is whether Respondent actually made a purchase from Guzman on the date in question. Respondent asserts that he did buy product from Guzman on July 11, 2006, and that all paperwork supporting the arrests contain true and accurate information. Guzman and Anderson maintain that no sale took place on that date. Set forth below is a summary of the relevant testimony.

At trial, Guzman testified that an individual named [REDACTED] gave Respondent his phone number. On the day at issue, he had just finished playing a game of soccer, when Respondent approached. His friend, Person A was also at the park. Respondent asked what was wrong with Guzman and why he was not answering his phone. Guzman described Respondent's demeanor as "very anxious and desperate." He recalled thinking something was amiss and told Respondent that he had no cocaine to sell. Respondent then asked for "crack, or marijuana, or any other thing." According to Guzman, Respondent seemed "a little angry" when he said no. Respondent then walked away without speaking or interacting with Person A. (Tr. 26-31) Shortly, thereafter, "police came out from everywhere," searched Guzman and found nine small plastic bags containing cocaine. Guzman claimed that the cocaine was intended for his personal use only. (Tr. 33, 54) The officers demanded that he produce money or "bills," but none were retrieved. (Tr. 34)

Although Guzman adamantly denied selling drugs to Respondent on July 11, 2006, he readily admitted that he had sold cocaine to Respondent twice just weeks before. (Tr. 46-48, 52) Guzman clarified at trial that he did not contest the July 2006 arrest because he thought it might

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have been related to those prior drug sales. (Tr. 35-36) He testified that he has no pending claims against the City or the Department in connection with this incident. (Tr. 40)

Person A could not appear at this disciplinary hearing because he was deported from the United States. (Tr. 324-25, 483, 513) Instead, the Department Advocate relied on an August 2010 interview with IAB investigators. A transcript of that interview, which took place during his incarceration, was introduced into evidence. (DX 8b at 6). At that time, Person A told the investigators that on the day at issue he went to a park to play soccer. As he was talking to Guzman, police officers emerged and took Guzman to a van. After the officers requested identification from those on the scene, he was arrested. Person A explained that it was at his court appearance that he first found out that he had been arrested for participating in a narcotics transaction and that one of the "bills" in his wallet was "from the precinct." (DX 8b at 13-15)²

At trial, Anderson also claimed that Respondent did not buy narcotics from Guzman on July 11, 2006. Anderson testified that he maintained a "visual" of Respondent at all times during his interaction with Guzman by positioning himself on the sidewalk and pretending to talk on his cell phone. (Tr. 188) According to Anderson, Respondent approached Guzman, went "back and forth for a little bit" and then walked away after two to three minutes. (Tr. 189) He did not observe a hand-to-hand transaction or any interaction with Person A (Tr. 191, 194-195) As Respondent walked by, however, Anderson heard him on the phone providing a description to the field team. He understood this conversation to mean that he was reporting a "buy." (Tr. 191-93) At the time, Anderson did not discuss his observations with Respondent or a supervisor. (Tr. 195)

² The buy report contradicts Person A's recollection and notes that prerecorded money was "not recovered." (DX. 3)

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Later that evening, Anderson and Respondent returned to the barn and proceeded to the second floor area shared by the detectives. (Tr. 196) Anderson recounted that as he was sitting at his desk talking to former detective Adolph Osback³ he saw Respondent remove a box of baking soda from the refrigerator and pour some into a small Ziploc bag. (Tr. 197-98) Anderson claims to have heard Respondent declare, "this is for [my] buy," but did not see what Respondent did with it afterwards. (Tr. 198-200) Neither Anderson nor Osback spoke to Respondent, or each other, about what he observed. (Tr. 200-201, 241-42)

Respondent denied all allegations levied by Guzman and Anderson. Although Respondent was not certain how he came into contact with Guzman that day, he suggested that he might have been walking around the park looking for subjects when he recognized Guzman from the prior sale. (Tr. 553-54, 556) He contended that Guzman sold him a small Ziploc bag of cocaine for \$20 and that he used prerecorded buy money to make the purchase. (Tr. 549) The buy report he prepared for that July 11, 2006 operation states as follows:

I met [REDACTED] at [REDACTED]. After a brief narcotic conversation, [REDACTED] asked me how much I wanted and I replied \$20.00 worth. [REDACTED] then handed me one clear ziplock bag containing a quantity of cocaine. I handed [REDACTED] \$20.00 USC PRBM who then handed the PRBM to [REDACTED] (Person A,). I then left the location and notified the field team of the positive buy along with the description and location of the subjects. A short time later I did observe the subjects in the custody of the field team at which time I made a positive identification of the subjects. Subsequently, they were arrested by the A/O .. . PRBM: Not Recovered (DX 3)

Respondent had no independent recollection of vouchering this particular buy product. (Tr. 558) At trial he explained that his general practice after making a purchase was to place the product on his desk while he changed and procured the requisite paperwork from the Field

³ Osback was on a different team and did not have a desk in this area. (Tr. 240, 540) In a separate proceeding Anderson made a series of allegations against Osback, indicating that he engaged in flaking on multiple occasions. Osback was terminated on September 21, 2015 following a Department trial. (See *Disciplinary Case Nos. 2010-2753 & 2010 3188*).

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Operations Desk at the front of the building. He explained that anytime he stepped away, the product would remain on his desk. Ultimately, the product would be placed in an envelope to await a supervisor who would sign and seal it before sending it to the police laboratory for testing. (Tr. 543-48) Respondent remembered being notified that the product he obtained from Guzman came back from the laboratory as negative for a controlled substance. (Tr. 556-60)

Respondent denied pouring baking soda into a plastic bag and vouchering it as the product for this buy. (Tr. 558) Respondent's counsel suggested that either Anderson or Osback switched the narcotics he purchased for baking soda to supplement the stash they used for flaking. Respondent, however, acquiesced that he was unsure of who was in the office when he left the product on his desk and did not see either individual actually make the switch. (Tr. 606-609)

Sergeant Christopher Castle and Lieutenant Edward Rodriguez of IAB provided additional information at trial. In August 2009, Castle was assigned to investigate allegations of narcotics flaking and official misconduct that Anderson made against approximately thirteen members of service at his proffer sessions with the Queens District Attorney's Office. (Tr. 311-12) He stated that none of Anderson's statements were initially credited and acknowledged that many allegations were either unsubstantiated or found to be untrue. (Tr. 313-14, 346)

With regard to the allegations Anderson made against Respondent, Castle agreed that Anderson was off by several months as to the date of Guzman's arrest and was also incorrect in stating that Guzman had no narcotics on him. (Tr. 354-55) Castle also recalled that Guzman was unable to pick Respondent out of a photo array, contradicting Guzman's assertion that he had done so. (Tr. 380-81) As to his conversations with Guzman, Castle testified that Guzman changed his account about prior encounters with Respondent. Initially, Guzman indicated that

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he had sold cocaine to Respondent in a bar. He later recanted this statement and instead claimed to have sold drugs to Respondent on a different street and in the same park where he was subsequently arrested. (Tr. 374-79)

Sergeant Castle's supervisor, Lieutenant Rodriguez, provided additional information about Anderson's proffer sessions. Rodriguez was present for all of these sessions and testified he was "impressed" with Anderson's memory and ability to recall details. (Tr. 472-73, 491). He agreed, however, that Anderson had lied to IAB before his arrest. (Tr. 488-89)

Resolution of this case turns on questions of credibility. Thus, it is left to this tribunal to sort out which version of events was closest to the truth. Few things are more difficult, yet more fundamental to the role of a trier of fact, than the task of attempting to reconstruct the most probable nature of a past event on the basis of conflicting testimonial accounts. This is particularly true when evaluating testimony about events that took place almost a decade ago. While the law creates the framework within which this task is to be accomplished, the ultimate determination of which account to accept depends on an assessment of witness credibility. That assessment remains the exclusive province of the fact finder.

In making such assessments, the trier of fact should consider a wide range of factors, including but not limited to, witness demeanor, witness background, corroborating evidence, the consistency of a witness' account both at trial and over time, the degree to which the witness is interested in the outcome of a case, the potential prejudice or bias of the witness, and perhaps most basically the degree to which the witness' account is logical and comports with common sense and general human experience. After carefully considering the conflicting accounts presented here, this tribunal finds that the preponderance of the evidence presented in support of

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the charges was less than reliable. Accordingly, I find Respondent not guilty of engaging in the charged misconduct.

The Department Advocate relied heavily on the testimony of Jhorman Guzman. At trial, Guzman revealed no apparent motive to fabricate an account of what occurred almost ten years after the fact. It is of note that Guzman has no pending lawsuit, and thus no monetary interest in the outcome of this case. In fact, by testifying here, the witness subjected himself to probing questions regarding disturbing matters such as his prior drug use and criminal history. He is also ten years older and did not appear to harbor undue anger or bias against either Respondent or the Police Department. On the contrary, even though he denied this sale, he did acknowledge making prior drug sales to Respondent.

It would be unwise, however, to accept Guzman's account merely because no clear motive was shown for him to testify falsely. The content of his trial testimony and prior IAB interviews must also be weighed and assessed for consistency. Upon examination it is clear that Guzman's testimony was not impeccably reliable. He made significant inconsistent statements which raised serious questions about his ability to recollect relevant facts. Regardless of whether these discrepancies were the result of lies, or the natural vagaries of memory ten years after the fact, on balance, they weigh significantly against Guzman's dependability as a witness.

For example, Guzman was interviewed by IAB on December 2, 2009, January 5, 2010 and April 6, 2010. At trial, he claimed not to remember the conversations well but openly admitted that he "didn't tell the truth" and that he "lied about everything" at the first two interviews. (Tr. 38-39, 56-59) For example, during the second IAB interview at the office of Guzman's attorney, he claimed to have had the following three interactions with Respondent:

- While with [REDACTED] Guzman sold Respondent cocaine for \$20 at the [REDACTED]

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- Guzman saw Respondent again while playing soccer with [REDACTED] in [REDACTED]. Although he did not sell him drugs then, he observed Respondent approach [REDACTED]
- On July 11, 2006, Guzman met Respondent again at a [REDACTED] [REDACTED] but did not sell him drugs. (Tr. 375-377)

During the third IAB interview, in the office of a different attorney representing Guzman, he admitted "lying" about selling drugs to Respondent at [REDACTED] and presented the following alternative scenarios:

- On June 20, 2006, Guzman met Respondent at or [REDACTED] [REDACTED]. Respondent gave [REDACTED] money, which was then given to Guzman in exchange for Respondent's drugs
- A few weeks later Guzman sold drugs to Respondent a second time in [REDACTED] [REDACTED]
- On July 11, 2006, he met Respondent again at the same [REDACTED] [REDACTED] but did not sell him drugs. (Tr. 379-380, 411-412)

In sum, during his IAB interviews, which commenced over three years after his arrest, Guzman gave dramatically different versions of his interactions with Respondent. He attributed these evolving accounts to being "afraid" and to wanting to "look innocent." (Tr. 39, 59) This sentiment might be understandable when applied to the first interview, which occurred on the street and without benefit of counsel. This rationale, however, does not logically explain the admitted "lies" he subsequently told IAB. It is important to note that the second and third IAB interviews took place at the offices of Guzman's attorneys. In addition, Guzman hardly seemed constrained by the need to "look innocent" inasmuch as his stories included admissions to multiple prior drug sales for which he had not been arrested.

Moreover, Guzman's third statement to IAB might actually be interpreted as corroborating Respondent's account. Respondent asserts that he purchased from Guzman on June 20 and July 11, 2006. Guzman, himself, told IAB that a second undated drug sale took place "a few weeks" after the uncontested June 20 sale to Respondent. Even though Guzman

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denied selling to Respondent on July 11, this estimated time frame coincides remarkably with his July 11 arrest date. Further, Guzman even stated that the drug sale that occurred a few weeks after June 20 did, in fact, take place at the very same park. Notably, in contrast to the June 20 and July 11 encounters, the record is devoid of any NYPD paperwork documenting a sale from Guzman to Respondent at [REDACTED] prior to July 11. As such, Guzman's reference to a sale in the park a few weeks after the June 20 sale may very well have referred to the July 11 sale in question.

Further, Guzman's claim that on July 11 he carried nine bags of cocaine solely for his own use is, on its face, highly dubious. Guzman's vague explanation for his sudden suspicion about Respondent's identity was also not convincing given that he claims to have sold him drugs twice before, including at that very location.

It must also be noted that at trial Guzman admitted that in 2006 he sometimes "partied" while using cocaine for "days" at a time. (Tr. 54) Although he is no longer a user, this admitted pattern of prior drug abuse raises serious questions about his ability to recollect relevant details with accuracy – particularly when he has provided such divergent versions of events. When examined in its totality, Guzman's recollection about the circumstances leading to his arrest is not deemed dependable and therefore insufficient to support the charges.

The corroboration for Guzman's account is similarly problematic. According to Respondent, Person A became implicated in the sale when he took the purchase money from Guzman. As stated in more detail above, Person A denied any involvement with a drug sale on July 11, 2006. During his IAB interview, however, Person A did not provide IAB with any information as to whether Guzman actually sold drugs to Respondent. When he spoke to IAB he

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was also explicitly seeking assistance to stop his pending deportation. (Ex. 8b) Thus, I find that Person A's statement is of limited probative value as to whether drugs were sold.

Anderson's trial testimony was consistent with Guzman's in claiming that a sale did not take place. As there is no evidence that Anderson had any independent contact with Guzman, their agreement on this point is probative. Anderson's credibility, however, warrants serious scrutiny. He is a convicted felon with a troubling history. Most notable, when he was an NYPD detective he arrested innocent individuals having a drink at a bar after falsely claiming that they had sold him drugs. In fact, the Department Advocate freely admitted in its summation that he "has on multiple occasions lied ... to help himself . . . and other people were hurt as a result of his lies." (Tr. 645) In addition, Department Advocate witnesses acquiesced that a number of allegations he made against former colleagues, including Respondent, were unsubstantiated or disproved. Specifically, Anderson told IAB that Respondent had also "flaked" a third party – a [REDACTED] on a different occasion. IAB's investigation concluded otherwise and found that Respondent purchased product from [REDACTED] twice and that each tested positive for cocaine. (Tr. 356 357)

Although, Anderson's cooperation agreement with the District Attorney was no longer in effect when he testified before this tribunal, it is noteworthy that he was still on parole at that time. Thus, whatever his motivation to testify about allegations he made when he was trying to shorten his jail sentence, it was unlikely to have been an unadulterated desire "to do the right thing." (Tr. 628) In short, without credible corroboration, it would be problematic to use Anderson's testimony to sustain a finding of guilt in this case.

On its face, the lack of narcotics in the vouchered product would seem to corroborate that no drug sale occurred. Given Anderson's lack of credibility, however, I discredit his claim that

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he witnessed Respondent fill a small Ziplock bag with baking soda and voucher it as the product he bought from Guzman. First, I find the baking soda scenario described by Anderson at trial to be implausible. Anderson testified that Respondent went to a refrigerator in the detectives unit's shared space, visibly "poured" baking soda into a small Ziplock bag, and declared out loud that it was "for the buy." Moreover, he seemingly did so without the expected logistical difficulties of accomplishing that task. That such corrupt behavior would brazenly take place in an open room where other undercover officers and supervisors had desks does not carry the indicia of reliability needed to support a finding of fact. This is particularly so in this case where there seemed to be animosity, and not trust, between Respondent and Anderson. (Tr. 478)

Second, there is serious cause for concern that someone with Anderson's dubious morals is the only witness who claims to have seen Respondent "pour" baking soda. Respondent's counsel presented a theory that Anderson knew the product vouchered was not a narcotic because he was the one who switched the cocaine Respondent purchased with baking soda. Although the trial evidence did not prove this theory, it is alarming that according to Anderson, Adolph Osback was also present at that time. As noted above, Osback is a former detective terminated from the Department after having been found guilty of flaking. Respondent may well have left the cocaine he purchased unattended in the presence of two discredited members of service who would not have been above switching out narcotics for baking soda to advance their own illegal flaking of innocent victims. Although based on this record it is not possible to determine how baking soda was sent for testing, without further corroboration I do not credit Anderson's account.

I further note that the failure to retrieve the prerecorded buy money does not indicate conclusively that there was no buy. As mentioned in the record, this is not an unusual

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occurrence in legitimate buy and bust operations. (Tr. 293) Given the number of people at the soccer field at the time of Guzman's arrest, the prerecorded buy money could have easily passed hands before the field team arrived.

In making these findings this tribunal acknowledges that Respondent has a significant interest in the outcome of this case and a strong motive to falsely deny any misconduct. The charges he faces are serious and carry the potential for profound consequences and stigma even beyond the context of his current employment. Thus, he has a significant incentive to testify in a manner that absolves him of wrongdoing. This alone, however, cannot be dispositive of a disciplinary case when the credible evidence is insufficient to support the charges. Moreover there was nothing revealed in Respondent's trial demeanor that indicated he was being untruthful. For example, rather than invent details to enhance his defense, Respondent candidly and repeatedly acknowledged his genuine inability to recall key facts due to the passage of time. Accordingly, I find Respondent not guilty of the misconduct set forth in Specifications 1, 2 and 3.

Specification 4:
Use of Force

Specification 4 concerns the January 13, 2007, arrest of Person B, Jonathan Martinez and Person C. Specifically, it is alleged that Respondent punched Person B and Martinez with brass knuckles prior to their arrest. Based on the record presented at trial, I find that there is insufficient credible evidence to support this charge.

It is undisputed that on January 13, 2007, Respondent and Undercover [REDACTED] were working as part of a narcotics team conducting buy-and-bust operations in Queens. [REDACTED] was the primary, pursuing narcotics purchases, and Respondent was his ghost. (Tr. 579) Person B and Martinez were near [REDACTED] where they

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were soon arrested by members of Respondent's field team. Fifty-seven dollars in cash and a ziplock bag containing marijuana were recovered from Martinez. The prerecorded buy money issued to [REDACTED] was not recovered. (DX 6) Martinez and Person C pled guilty to disorderly conduct. (Tr. 97-98, RX B at 5)

After the arrests, a medical treatment of prisoner form was prepared indicating that EMS gave Person B aspirin for a toothache and headache. A box was checked on the form indicating that the injury was "old" and that he refused further medical aid. (DX 6)

In dispute are the specific circumstances surrounding these arrests and whether Respondent used force during their interaction. The investigation into this 2007 arrest also stemmed from allegations made by Anderson in his proffer sessions with the Queens District Attorney. At trial, Anderson testified that he received information about this incident from Respondent's undercover partner from the day. Specifically, the undercover relayed that Respondent, while assigned to be the ghost, had started a confrontation with two individuals and then punched them with brass knuckles. (Tr. 202-04) Anderson stated that he did not have a particularly close relationship with this undercover and could not explain why he was approached. (Tr. 205 06, 295-96) Anderson did not report this incident to anyone until his proffer sessions. (Tr. 295)

Martinez testified at trial that on the evening in question, he was walking [REDACTED] [REDACTED] when he ran into Person B near [REDACTED] [REDACTED] and invited him to a party. He acknowledged carrying a "nickel bag" of marijuana that he intended for his own use. (Tr. 63-66, 71-72)

According to Martinez, a Caucasian male and a Hispanic male approached. The Caucasian male said nothing but the Hispanic male repeatedly asked Person B, "[w]here's my

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stuff? . . . You think I'm a sucker." (Tr. 73, 78, 109-10) He described this individual, who he identified for this tribunal as Respondent, as "loud" and "upset." (Tr. 78) Martinez stated that Person B ignored Respondent and instructed Martinez to do the same. Respondent, however, "just kept harassing, harassing." Respondent then put his hands in his pocket and pulled out something "shiny, like metal," which he put between his fingers before punching Person B on the left side of his face. (Tr. 73-74, 79-84, 115-16) Martinez did not observe any blood, cuts or lacerations on Person B. (Tr. 117) He and Person B walked into a nearby store where Person B directed Martinez to stay calm. He contended that Respondent entered the store after them and that Respondent again hit Person B with metal object. (Tr. 73) Martinez attempted to swing at Respondent, but Person B restrained him in a "bear hug" and again warned him to not retaliate. (Tr. 85-87) Seconds later, Respondent struck Martinez on the left side of his face and other police officers rushed in to arrest them. He did not notice that a third male had also been arrested until after he was handcuffed and brought outside the store. (Tr. 91) Person B explained in the police van that Respondent was an undercover. (Tr. 93)⁴

Martinez testified that he told the arresting officers that he was injured but "they didn't do anything." (Tr. 94, 121) At the time he denied the allegation that he had sold drugs but did not file a complaint about the arrest because he "was scared." (Tr. 95)

Person B did not testify at trial. Instead, a transcript of his November 5, 2011, interview with Sergeants Castle and Carrero of IAB was entered into evidence. (DX 7) At that interview he stated that on the day of his arrest, he was smoking a cigarette outside a bar when "two Spanish guys" he did not know approached asking for narcotics. (DX 7 at 3-6, 9) He recalled that they persisted, saying he must know someone who could get them cocaine, but he

⁴ Martinez claimed he did not know at the time of their arrests that Person B was involved in selling drugs but stated he later learned that was the case. (Tr. 70-71) He also stated that after the arrest, Person B told him he was "high on crack." (Tr. 86)

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repeatedly told them no. He offered to buy them a beer and went into a nearby bodega with a \$10 bill one of the men gave him to purchase a six-pack. (DX 7 at 4, 8-10)

Shortly after, Person B saw Martinez walking by and asked him to go inside the bodega with him. When they entered the store Person B told Martinez that two men had repeatedly asked to buy drugs. He described them as "kind of iffy." (DX 7 at 11-14) According to Person B, the officer entered the store and noticed Person B pointing at him. (DX 7 at 11-12) The shorter, [REDACTED] male then went inside his pocket and hit Person B twice on the left side of his face with brass knuckles. (DX 7 at 5, 11, 13, 15) Martinez started to "go after" the assailant but Person B grabbed him. The [REDACTED] male then hit Martinez with the brass knuckles. (DX 7 at 5, 14)

Another friend, "Trouble" or Person C, saw the altercation, came over and tried to swing at the taller [REDACTED] undercover. (DX 7 at 6-7, 15) Seconds later, Person B recounted, "[t]hey arrested us for saying that we took some money, like some transaction with some money, but the only transaction was when they gave me the money for the beer." (DX 7 at 5, 7) He denied having any cocaine that day but acknowledged that he had a history of drug use and prior arrests. (DX 7 at 18)

As to injuries, Person B claims that his face was bruised but noted that it healed within a few days. (DX 7 at 19) After looking at a photo array, he selected one of the individuals as the person who punched him but acknowledged he wasn't entirely certain. (DX 7 at 22) Person B stated that he "copped out to a misdemeanor" and pled guilty because Martinez had also pled guilty and he felt he might lose his case, which would have resulted in a year in prison as he was on probation at the time. (DX 7 at 20-21) Instead, he served 45 days on Riker's Island.

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Person C could not be located to testify but briefly spoke to an IAB sergeant by phone on January 5, 2013. (RX B) A transcript of this conversation was entered into evidence. Person C testified that "two confidential informants" were already engaged in conversation with Person B when he arrived and recalled being offered beer. Person C did not know what was going on with Person B and the undercover but asserted that there was no possibility that a drug transaction had occurred because "[Person B] don't deal . . . he don't sell . . ." (RX B at 3-6). When asked if there was any physical altercation with the undercover, he stated "no, no, none at all." He did, however, characterize the undercover as verbally abusive when he and Person B said they didn't sell drugs. (RX B at 4) Person C, who acknowledged pleading guilty to disorderly conduct following this arrest, declined to speak with investigators further stating, "you know what I'm not pressing charges on the officers . . . you know, I got caught up in something . . . wrong time, I got caught up, I did my couple days, I moved on . . ." (RX B at 5-7)

Sergeant Castle of IAB provided additional information about the paperwork prepared following the arrests, which indicated that Person B had refused medical treatment. The form noted that he had a broken tooth, which was a preexisting injury. (Tr. 391; DX 6) Castle testified that he made sure to get a color photo of Person B's mug shot to determine there were no visible injuries. (Tr. 393, RX D) There was no medical treatment of prisoner form for Martinez, which Castle explained meant that he never received medical treatment or attention while in custody. (Tr. 391-94) Finally, Castle agreed that there was no record of Person B or Martinez complaining that force was used against them. He also stated that they uncovered no evidence that Person B or Martinez knew Anderson. (Tr. 391, 403)

Respondent provided an entirely different account of his involvement in these arrests. At trial he recalled being the ghost for [REDACTED] As such, Respondent testified that he did

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not participate directly in the buy. Consistent with his designated role, he observed the undercover and provided a "play-by-play" to the field team. Respondent specifically recalled that [REDACTED] engaged with three individuals—Person B, Martinez and Person C. After a few minutes, Respondent determined from the body language of the undercover and the other men that "something wasn't right." (Tr. 573) He sensed that an argument was about to break out and feared the undercover, who he stated was fairly new, would be hurt. He radioed the field team to let them know something was amiss and then ran over to the undercover, grabbed him and said, "Let's get out of here." (Tr. 574) As the field team moved in, Respondent and [REDACTED] ran off. This was the only time Respondent could recall sending a distress signal to a field team. (Tr. 601)

Respondent denied that he had a physical altercation with any of the three arrestees. Specifically, he asserted at trial that he did not hit anyone with brass knuckles. (Tr. 575-76) Respondent contended he has never carried brass knuckles at any point during his tenure with the Department. (Tr. 576) Respondent did not prepare a ghost DD-5 form regarding this buy because it was not required nor requested by a supervisor. (Tr. 613)

Detective Alexander Winters, a member of the field team, also testified as to his recollections of these arrests.⁵ He testified that on January 13, 2007, he was assigned to the prisoner van of the narcotics buy-and-bust team. He recalled that an undercover was engaged with three males when Respondent placed a distress signal over the radio, which Winters agreed was an unusual occurrence. (Tr. 426, 447). At that point, the field team, who was a block away,

⁵ Winters noted that he had a prior disciplinary adjudication for making an inaccurate statement in an affidavit. He explained that he had seen an individual smoking what he believed was a marijuana cigarette, approached his vehicle and saw a bag of marijuana in the ashtray. He arrested him, writing "marijuana bag" on his voucher report but preparing an affidavit that said "marijuana cigarette." When he went to court, he pointed out the mistake to the ADA. On cross examination, Winters admitted that he threw away the cigarette when field tests revealed it was not marijuana and was also charged with failing to properly voucher it. (Tr. 439-40) He stated that he did not believe it was important. (Tr. 443) The criminal case against the individual was ultimately dismissed. (Tr. 442) Winters agreed to a penalty of 35 vacation days in connection with this incident. He believed the case was finalized in 2012.

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raced to the location, arriving within thirty seconds. (Tr. 426-27, 452) Winters agreed that he had no idea what had happened between Respondent and the individuals prior to his arrival as he had no visual of them. (Tr. 452-53)

Upon arrival, he testified that he saw Respondent with his back toward a roll-down gate and Person B "swinging something at [Respondent]." (Tr. 425-26, 428). Winters ran over, pushed Person B into the gate, spun him around and handcuffed him. (Tr. 426, 429) He grabbed another individual and his partner did the same. He was unsure who grabbed Martinez or Person C. (Tr. 426) Winters testified that he did not see Respondent punch Person B and did not see brass knuckles in Respondent's hand. (Tr. 429-430)

Winters was the operator of the van that brought the arrestees back to the precinct. He took polaroid photos of Person B and Martinez as soon as they returned to the precinct. (Tr. 435-37, RX E-F). Winters contended he did not hear Person B make any comments on the circumstances of his arrest nor claim that force was used against him. (Tr. 431) He recalled no visible injuries, but noted that Person B later complained at length about a tooth that he had broken a few weeks before. Winters promised that someone would get him aspirin at Central Booking. (Tr. 431-32) He could not recall with certainty whether he prepared the medical treatment of prisoner form, noting it could have been prepared by EMS. (Tr. 434) Winters agreed that he did not know what Person B said to EMS but if he had asked to go to the hospital, he would have been taken. (Tr. 456) Because he did not go to the hospital, a box was checked on the form indicating Person B had refused treatment. (Tr. 455-56) Winters explained, however, that he did not offer Person B medical treatment because he did not notice any injuries. (Tr. 459)

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As to Martinez, Winters stated he did not offer medical treatment as Martinez did not complain of any injuries. (Tr. 433) He had no knowledge of whether EMS provided Martinez with aspirin but did not believe any aid had been given as a medical treatment form would have been prepared. (Tr. 461)

Respondent's undercover partner, UC 1999, did not testify at trial but was interviewed by Sergeant Castle on January 11, 2013. (RX C) He recalled that on January 13, 2007, he was working in the field as a primary undercover with Respondent as his ghost. (RX C at 7) The buy report he prepared reads as follows:

I approached [REDACTED] and engaged in a narcotic related conversation about cocaine. I handed [REDACTED] \$30.00 PRBM, which he handed to [REDACTED]. A short moment later [REDACTED] returned with two small ziplock bags of cocaine. A dispute started between [REDACTED] and [REDACTED] about the product. [REDACTED] never handed me the product; neither the PRBM. In return I ask him for the PRBM (prerecorded buy money) and [REDACTED] intervened; at this point a dispute started at which time the field team moved in. I saw [REDACTED] and [REDACTED] in custody of the field team." (DX 6) (Sergeant Castle of IAB indicated that Person B was [REDACTED]" and Person C was [REDACTED] (Tr. 382, 386))

Having reviewed his buy report, he recalled it as a buy and bust operation where he handed over money but was unable to get product. (RX C at 10-11) He noted this had happened on other occasions. The detective could not recall whether he had bought the individuals alcohol during the course of the interaction. (RX C at 11)

The undercover recalled that one of the individuals, [REDACTED], began complaining to [REDACTED] about the product he brought but that the encounter did not turn physical. (RX C at 11) He stated that he walked away "because the guy refused to give me anything." He denied that either he or Respondent punched anyone. (RX C at 12) He further denied ever seeing Respondent in possession of brass knuckles. (RX C at 12, 15) [REDACTED] asserted that he did not

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“flake” these individuals. (RX C at 15) Finally, he stated that if he had observed or become aware of any misconduct, he would have reported it to IAB. (RX B at 17)

After reviewing the record in its entirety, I found the evidence presented in support of this charge to be inconclusive. Although Martinez was seemingly sincere when he testified that he had turned his life around during the past nine years and that he did not file any complaint about the arrest, there were significant inconsistencies throughout the narratives presented that could not be overlooked.

Martinez’s own version of events differed on relevant points. For example, on direct examination he claimed that he ran into Person B before the undercover officers approached. On cross examination, Martinez agreed that he had told IAB investigators that Respondent was already addressing Person B when he first spotted them. On direct examination Martinez testified that he saw Respondent reach into his pocket and place a shiny metal object between his fingers before striking Person B. On cross examination Martinez contradicted himself, stating he did not see a shiny object until after Respondent hit Person B.

More problematic were the differing accounts offered by Martinez, Person B and Person C. During his IAB interview, Person C clearly stated that there was no physical altercation during the interaction with Respondent and his partner. Person B, however, told IAB that Person C not only witnessed Respondent strike him, but came forward to strike Respondent’s partner in his defense. Although Person C admittedly approached midway through this police encounter, this alone does not explain the inconsistency. Likewise, Martinez testified that he was with Person B when Respondent allegedly assaulted him twice with brass knuckles – once on the street and a second time inside the store. In contrast, Person B told IAB that he first met Martinez as he was entering a bodega to buy beer for the detectives. He did not

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corroborate Martinez's testimony that Respondent struck Person B on the street as well as inside the bodega.

This tribunal acknowledges that slight variations in accounts may be attributable to the vagaries of memory that occur naturally with the passage of time particularly when the event at issue occurred nine years ago. The inconsistent statements at issue here, however, are irreconcilable and troubling. In fact, one of the arrestees affirmatively stated that no altercation took place at all. In addition, neither the medical treatment of prisoner form nor the pictures taken after arrest can be reasonably used to support a finding that Respondent used brass knuckles. Within this context, the documentary evidence presented at trial did not sufficiently corroborate Anderson's testimony or the testimony of the arrestees.

In making this finding, I acknowledge that it is probative that Anderson's allegation of the use of brass knuckles is consistent with the allegations of Martinez and Person B. In light of the inconsistencies above, however, this factor is not dispositive of the case.

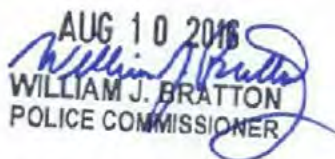
Accordingly, I find Respondent not guilty of the misconduct charged in Specification 4.

Respectfully submitted,



Fok Rosemarie Maldonado
Deputy Commissioner Trials

APPROVED

AUG 10 2018

WILLIAM J. BRATTON
POLICE COMMISSIONER